

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jerome Wells	Team: Team # 2	CCRB Case #: 200403231	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 04/03/2004 4:10 PM	Location of Incident: § 87(2)(b), Manhattan	18 Mo. SOL 10/3/2005	Precinct: 26
Date/Time CV Reported Tue, 04/06/2004 1:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/09/2004 2:12 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Riley	24769	929034	026 PCT
2. POM Marcy Velez	11107	926250	026 PCT
3. POM Rolando Carbonell	02708	928017	026 PCT
4. POM Rafael Iturralde	22881	928515	026 PCT
5. POM Yuseff Hamm	21494	928455	026 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Thomas Bonaro	01557	894538	026 PCT
2. SGT Diana Luke	03904	907647	026 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Rafael Iturralde	Force: PO Rafael Iturralde used physical force against § 87(2)(b)	A . Exonerated
B . POM Rolando Carbonell	Force: PO Rolando Carbonell used physical force against § 87(2)(b)	B . Exonerated
C . POM Yuseff Hamm	Force: PO Yuseff Hamm used physical force against § 87(2)(b)	C . Exonerated
D . POM Thomas Riley	Force: PO Thomas Riley used physical force against § 87(2)(b)	D . Exonerated
E . POM Marcy Velez	Force: PO Marcy Velez used physical force against § 87(2)(b)	E . Unfounded
F . POM Thomas Riley	Abuse: PO Thomas Riley threatened § 87(2)(b) with the use of force.	F . Exonerated

Synopsis

On April 9, 2004, the CCRB received a complaint from IAB filed on behalf of § 87(2)(b). § 87(2)(b) alleged that on April 4, 2004, he was walking on Amsterdam Avenue in Manhattan with his girlfriend and an unknown man made a comment to her. As § 87(2)(b) began to approach the male, numerous officers arrived in patrol cars and used force against § 87(2)(b) and handcuffed him (Allegations A-E) and that one of the officers threatened him with the use of pepper spray (Allegation F).

§ 87(2)(g)

It is therefore recommended that Allegation A-D and F be closed as exonerated and Allegation E be closed as unfounded.

Summary of Complaint

At approximately 4:10 PM on April 3, 2004, § 87(2)(b) was walking on Amsterdam Avenue with his girlfriend § 87(2)(b). As they were walking, an unidentified male made a comment to § 87(2)(b). § 87(2)(b) had his back turned at the time, but stated that § 87(2)(b) seemed disturbed by the comment. § 87(2)(b) then began to approach the male, but stated as he was walking toward him approximately six police cars “came out of nowhere,” and eight uniformed officers demanded that § 87(2)(b) get against the wall, and pushed him against the wall. § 87(2)(b) stated he did not know why the officers stopped him.

§ 87(2)(b) stated that the officers threw him down on the sidewalk, put a nightstick around his neck, put his arms behind his back and handcuffed him. § 87(2)(b) stated all of the officers were on top of him. As this was transpiring, § 87(2)(b) was telling the officers that § 87(2)(b) did not do anything, and that they had the wrong person. § 87(2)(b) was then placed in a patrol car and taken to the 26th precinct. § 87(2)(b) stated that at least 15 minutes passed from the time the police initially stopped him to the time he was placed in the patrol car. Upon questioning, § 87(2)(b) stated that he was not at a Blockbuster Video store at anytime before the police arrived. § 87(2)(b) identified PO Marcy Velez and PO Thomas Riley as two of the officers who used force against him by their shield numbers. § 87(2)(b) also stated that PO Riley was making threatening gestures towards him on the scene with pepper spray in his hand.

§ 87(2)(b) stated that he was in the precinct for 30 minutes before he was informed why he was arrested. § 87(2)(b) stated that he was arrested § 87(2)(b). He stated that he was not disorderly, nor did he resist the officers at any time, during the incident. § 87(2)(b) was then taken to § 87(2)(b). § 87(2)(b) stated that he did not want to go to the hospital, but was forced to. § 87(2)(b) asked the officers to allow him to sign a paper saying he did not want to go to the hospital, but this was not given to him. While in the ambulance, § 87(2)(b) complained of chest and shoulder pains. The ambulance then pulled over on Park Avenue and the EMTs administered oxygen to him. § 87(2)(b) stated PO Riley was in the ambulance with him.

§ 87(2)(b) eventually reached the hospital, and told the doctors that he did not want to be there, and that he wanted to speak to his lawyer. While § 87(2)(b) was being treated, he stated that the doctor made a comment about his wife, who he has been separated from for 6 years. The comment made § 87(2)(b) very upset. § 87(2)(b) began to get very excited and stated he had an irregular heartbeat and he was placed in the psychiatric ward. While in the psychiatric ward, § 87(2)(b) remembered being placed on a bed and having fifteen people hold him down while a doctor gave him a needle. § 87(2)(b) was kept overnight, and was released the next morning. He stated that after he was released, he went to see the judge and was released under his own recognizance.

Results of Investigation

Civilian Witnesses

§ 87(2)(b)

On May 6, 2004, the investigator spoke to § 87(2)(b) over the phone and scheduled her to be interviewed on May 7, 2004. § 87(2)(b) did not appear for this interview and did not call to cancel or reschedule. On June 21, 2004, the investigator spoke to § 87(2)(b) over the phone. § 87(2)(b) stated that she is no longer dating § 87(2)(b) and does not want to be associated with him in any way, therefore she did not want to be involved in his complaint. § 87(2)(b) did not want to provide the investigator many details about what transpired, but did say that she and § 87(2)(b) had a confrontation inside of a Blockbuster Video store, however, she would not specify the details of the confrontation. She further stated that she felt as though § 87(2)(b) was overreacting which led him to be placed in the psychiatric ward at § 87(2)(b).

911 Callers

Two 911 calls were placed by people who witnessed § 87(2)(b)'s physical assault on § 87(2)(b). The first call was placed by an employee inside of the Blockbuster Video store where the alleged assault took place, named § 87(2)(b). A call was placed to this store and to § 87(2)(b) on June 21, 2004. The investigator was informed that § 87(2)(b) no longer worked in the store and no further information was known. The second 911 call was placed by a man named § 87(2)(b) who witnessed the assault. A message was left for § 87(2)(b) on June 21, 2004 explaining the CCRB to him and asking for his cooperation in the complaint. A query of MetroSearch was also conducted to retrieve contact information for § 87(2)(b) with negative results. § 87(2)(b) did not return the investigator's call and was not used as a witness in this complaint.

Police Officer Interviews

PO Thomas Riley

PO Riley was interviewed at the CCRB on July 21, 2004. On April 3, 2004 PO Riley worked a 4x12 tour assigned to Sector Patrol with PO Velez. PO Riley was dressed in uniform and assigned to a marked vehicle.

At approximately 4:10 PM on April 3, 2004, PO Riley and PO Velez received a call for an assault in progress inside a Blockbuster Video store located at § 87(2)(b) in Manhattan. PO Riley stated that according to the 911 calls, § 87(2)(b) was beating up his girlfriend inside of the Blockbuster. Witnesses on the scene identified § 87(2)(b) to the officers as the person who committed the assault. PO Riley stated there was an attempt by four to six officers on the scene to handcuff § 87(2)(b) because he was resisting. When PO Riley arrived on the scene, § 87(2)(b) was being placed in handcuffs, and PO Riley assisted in helping him up, because he was placed in handcuffs face down on the ground. PO Riley did not see any officers punch, kick, or hit § 87(2)(b) in any way, nor did he see any officer put a nightstick around § 87(2)(b)'s neck. PO Riley stated he did not see any injuries on § 87(2)(b) either. PO Riley stated that § 87(2)(b)'s girlfriend, § 87(2)(b) was telling the officers that they were arresting the wrong person.

PO Velez went inside of the Blockbuster Video store, where the 911 calls originated from, to get witness statements. PO Riley then attempted to put § 87(2)(b) in the patrol car. § 87(2)(b) refused to be placed in the patrol. He looked at PO Riley's shield, called him by his name and told him he was arresting the wrong person. PO Riley informed § 87(2)(b) that he was under arrest and to get inside of the car. § 87(2)(b) still refused to get into of the patrol car. PO Riley then placed his hand on the top of § 87(2)(b)'s head and tried to guide him into the vehicle, but § 87(2)(b) would not comply. PO Riley then asked § 87(2)(b) if he wanted to be maced, but § 87(2)(b) still did not comply. PO Riley stated that PO Rodriguez opened the opposite door of the patrol car, and the two officers placed § 87(2)(b) in the car. PO Riley and PO Blake transported § 87(2)(b) to the 26th Precinct.

While at the precinct, § 87(2)(b) refused to provide any information to the desk sergeant, and was placed in a holding cell. Approximately 20 minutes later, the officers heard loud noises coming from the cell area. PO Riley stated that § 87(2)(b) was screaming loudly and could be heard to the front of the precinct. PO Riley remembers him screaming to call IAB. Lt. Timothy Dheedene made the determination to "EDP § 87(2)(b) and take him to the hospital." An ambulance was called and § 87(2)(b) was taken to § 87(2)(b). PO Riley stated that while inside of the ambulance § 87(2)(b) began to complain of chest pains, and began to break out in sweats. The ambulance was pulled over, and § 87(2)(b) was administered oxygen before proceeding to the hospital. At the hospital, § 87(2)(b) was examined by a doctor, administered medication and released.

PO Marcy Velez

PO Velez was interviewed at the CCRB on July 22, 2004. On April 3, 2004, PO Velez worked a 4x12 tour assigned as 26th Precinct Sector Patrol with PO Riley. PO Velez was dressed in uniform and assigned to a marked vehicle.

At approximately 4:10 PM on April 3, 2004 PO Velez and PO Riley received a call over the radio for an assault in progress at a Blockbuster Video store located at § 87(2)(b) in Manhattan. PO Velez stated they responded to the scene approximately one minute after receiving the call. PO Velez stated that when the officers arrived on the scene, other units were already there, and § 87(2)(b) was already in handcuffs and being walked over to a patrol car. PO Velez recalls seeing PO Carbonell and PO Iturralde walking with § 87(2)(b) but did not know if they were involved in handcuffing him. PO Velez then went inside of the Blockbuster to find out what happened from the employees inside. PO Velez spoke to two of the employees who told him that they saw § 87(2)(b) and his girlfriend, § 87(2)(b) arguing outside of the Blockbuster, § 87(2)(b) then grabbed § 87(2)(b) inside of the store and began yelling at her. The two then began walking around the aisles, "making a public disturbance." The two eventually exited the store and § 87(2)(b) inside called 911. When PO Velez left the Blockbuster all of the police cars left the scene, except one belonging to Sgt. Diana Luke. PO Velez then left the scene with Sgt. Luke and went back to the precinct. PO Velez did not witness what transpired with § 87(2)(b) while on the scene because he immediately went into the Blockbuster store, and therefore did not see any officers use force towards § 87(2)(b) in any way.

When PO Velez arrived at the precinct, § 87(2)(b) was alone in a holding cell, next to another cell with a prisoner in it. PO Velez stated that § 87(2)(b) was "carrying on" while inside the cell. PO Velez did not remember specifically what § 87(2)(b) was doing, but recalls hearing § 87(2)(b) screaming throughout the precinct. The second prisoner began asking § 87(2)(b) what he was arrested for and that he should call the CCRB to make a complaint against the officers. § 87(2)(b) kept "acting up" in the cell, and the supervisor decided to EDP § 87(2)(b) and have him sent to the § 87(2)(b). PO Velez stated § 87(2)(b) was in the precinct for 15-20 minutes. An ambulance came to the precinct, and § 87(2)(b) was to be transported to the hospital. PO Riley went into the ambulance with § 87(2)(b) and PO Velez followed in a patrol car. PO Velez followed the ambulance until it stopped on 128th Street and Park Avenue. The driver of the ambulance walked to the back of the ambulance and opened the door. PO Velez then exited his patrol car to find out what was happening. § 87(2)(b) was complaining that he could not breathe and the ambulance workers administered oxygen to § 87(2)(b) and told him that they would arrive at the hospital right away. When they reached the hospital, § 87(2)(b) complained to the doctors and they gave him medication to calm him down. § 87(2)(b) was eventually placed in the

psychiatric ward. PO Velez stated that § 87(2)(b) was with § 87(2)(b) in the precinct and followed the ambulance to the hospital.

PO Rafael Iturralde

PO Iturralde was interviewed at the CCRB on November 16, 2004. On April 3, 2004, PO Iturralde worked a 4x12 tour assigned to 26th Precinct Conditions with PO Carbonell. PO Iturralde was dressed in uniform and assigned to a marked vehicle.

At approximately 4:10 PM on April 3, 2004, PO Iturralde and PO Carbonell responded to a radio run for an assault in progress at § 87(2)(b). PO Iturralde did not know if the assault took place inside of a Blockbuster Video store located on that block, but stated that the 911 call originated from there. PO Iturralde believed he and PO Carbonell were the second police car to arrive on the scene. PO Iturralde believed that PO Hamm's was the first car on the scene because he remembers seeing him on the scene. PO Iturralde noticed that there was a female, later identified to be § 87(2)(b) crying on the scene whose hair was disheveled and appeared to have been pulled. PO Iturralde remembers her saying, "it's over, he left," and trying to get into her car. PO Iturralde stated that a crowd of about five people formed near the Blockbuster and was pointing down the street and towards a male, later identified to be § 87(2)(b) who was half a block away, and began saying, "that's him, that's the guy that was hitting her."

PO Iturralde stated that a group of approximately four officers approached § 87(2)(b) and PO Iturralde heard § 87(2)(b) say, "Why the fuck are y'all running up on me, you aren't going to lock me up." The officers then approached § 87(2)(b) began to struggle and would not comply with their orders to put his hands behind his back. After a struggle with the officers, § 87(2)(b) ended up on the ground and other officers held his arms while PO Iturralde placed handcuffs on him. PO Iturralde did not recall exactly how § 87(2)(b) ended up on the ground, but stated that none of the officers used any force towards § 87(2)(b) besides trying to handcuff him. PO Iturralde further stated that he did not see any officers threaten § 87(2)(b) with pepper spray. PO Iturralde stated the § 87(2)(b) stayed near the Blockbuster while this was taking place, and that it took place approximately half a block from the Blockbuster. After § 87(2)(b) was handcuffed, PO Iturralde went to the Blockbuster to speak to the worker that called 911. PO Iturralde learned from the worker that § 87(2)(b) was "slapping § 87(2)(b) around" inside of the Blockbuster. When PO Iturralde was done talking to the Blockbuster worker and left the store, § 87(2)(b) was no longer on the scene. PO Iturralde did not know which officers transported § 87(2)(b) to the precinct. PO Iturralde stated that when he left the scene, he resumed patrol and did not have any contact with § 87(2)(b) back at the precinct.

PO Rolando Carbonell

PO Carbonell was interviewed at the CCRB on November 16, 2004. On April 3, 2004, PO Carbonell worked a 1530x0005 tour assigned as 26th Precinct Conditions with PO Iturralde. PO Carbonell was dressed in uniform and assigned to a marked patrol car.

At approximately 4:10 PM on April 3, 2004, PO Carbonell and PO Iturralde received a radio run for an assault in progress, "a male assaulting a female," inside of a Blockbuster Video store on § 87(2)(b). When the officers arrived at the location, a Blockbuster worker came out to where the officers were and pointed to a male, later identified to be § 87(2)(b) walking away from the store, and told the officers that he was the perpetrator of the assault. PO Carbonell stated that there was a female, later identified to be § 87(2)(b) in front of the Blockbuster store crying, but neither PO Carbonell nor PO Iturralde had any contact with her since the Blockbuster employee already pointed out § 87(2)(b). The officers began to walk after § 87(2)(b) who had made his way down the block at this point. PO Carbonell stated that PO Hamm was ahead of him and PO Iturralde as they walked after § 87(2)(b). When they reached § 87(2)(b), § 87(2)(b) made a comment to the effect that he was not going to be arrested. PO Hamm told § 87(2)(b) to turn around and tried to place him in handcuffs but § 87(2)(b) resisted, so PO Carbonell and PO Iturralde assisted PO Hamm. § 87(2)(b) was taken to the ground and

placed in handcuffs. PO Carbonell did not recall how long it took to handcuff § 87(2)(b) after he was taken to the ground, but stated that he was resisting by refusing to place his hands behind his back at the time.

After he was handcuffed, PO Carbonell recalls § 87(2)(b) screaming and cursing at the officers. PO Carbonell stated that none of the officers used any force towards § 87(2)(b) besides trying to handcuff him. He stated none of the officers used nightsticks towards § 87(2)(b) and that he did not see any officers remove their pepper spray canisters. PO Carbonell stated that other officers arrived on the scene after § 87(2)(b) was placed in handcuffs, but they did not assist in his being handcuffed. PO Carbonell stated that Sgt. Luke arrived on the scene after § 87(2)(b) was handcuffed and told the officers on the scene to resume their patrol. PO Carbonell and PO Iturralde then returned to patrol and did not have any further interaction with § 87(2)(b) on the scene and did not see him back at the precinct.

PO Yuseff Hamm

PO Hamm was interviewed at the CCRB on February 16, 2005. On April 3, 2004, PO Yuseff Hamm worked a 1500x2335 tour assigned to the 26th Precinct's critical response vehicle with PO Santos. PO Hamm was dressed in uniform and assigned to a marked vehicle.

At approximately 4:10 PM on April 3, 2004 PO Hamm received a call for an assault in progress at a Blockbuster Video store located on § 87(2)(b). PO Hamm stated that he and PO Santos just drove by that location when they received the call, so they quickly turned around to get to the location. PO Hamm stated that he and PO Santos were the second unit to arrive to the location. PO Iturralde and PO Carbonell were the first unit there. While on the scene PO Hamm noticed a female, later identified to be § 87(2)(b) in a car in front of the Blockbuster who was crying and had disheveled hair. PO Hamm went over to speak to the female and tried to find out information from her about the assault. While PO Hamm was talking to § 87(2)(b) a group of people formed in front of the Blockbuster and began to point and say, "that's the guy, that's the guy," referring to a male, later identified to be § 87(2)(b) walking Southbound on Amsterdam Avenue. As PO Hamm was still talking to § 87(2)(b) he noticed PO Iturralde and PO Carbonell walking towards § 87(2)(b) and attempting to handcuff him. PO Hamm stated that he was not having any success in retrieving information from § 87(2)(b) because she was crying and not really supplying any relevant information, so he decided to assist PO Iturralde and PO Carbonell because § 87(2)(b) was resisting at the time.

PO Hamm stated that § 87(2)(b) was still resisting when he came over, so he grabbed one of his arms and put it behind his back while one of the other officers handcuffed him. PO Hamm did not recall how long it took to successfully handcuff § 87(2)(b) but stated it was not quick. After PO Hamm was done handcuffing § 87(2)(b) he returned to talk to § 87(2)(b) but stated she was talking to another unidentified officer at the time, so PO Hamm returned to his patrol car and resumed patrol at this point. PO Hamm did not see any of the officers punch or kick § 87(2)(b) or use their nightsticks towards him in any way, nor did he see any officers remove their pepper spray canisters to use against § 87(2)(b). PO Hamm stated that there were many officers on the scene, but did not remember them assisting in handcuffing § 87(2)(b). PO Hamm stated that he and PO Santos were on the scene for approximately 10 minutes and did not have any contact with § 87(2)(b) after he was handcuffed. PO Hamm also stated that he did not know where PO Santos was at any point during the incident.

Sgt. Diana Luke

Sgt. Luke was interviewed at the CCRB on November 16, 2004. On April 3, 2004, Sgt. Luke worked a 4x12 tour assigned as the 26th Precinct's Patrol Supervisor, but could not recall who her partner was. Sgt. Luke was dressed in uniform and assigned to a marked vehicle.

At approximately 4:10 PM on April 3, 2004, Sgt. Luke received a radio run for an assault in progress in front of § 87(2)(b) in Manhattan. When Sgt. Luke arrived at the location, she observed four officers from the 26th Precinct attempting to handcuff a male, later identified to be § 87(2)(b). Sgt. Luke stated that these were the first four officers on the scene that she saw. Sgt. Luke could not remember

which officers were attempting to handcuff § 87(2)(b) but stated that PO Riley was the arresting officer, and she later found out that PO Iturralde and PO Carbonell were involved in the handcuffing. Sgt. Luke stated that the officers were struggling to handcuff § 87(2)(b) when she first arrived on the scene. Sgt. Luke recalled the officers being on the ground trying to place handcuffs on § 87(2)(b) when she initially arrived on the scene because he was resisting, and by the time she exited her car, he was handcuffed. Sgt. Luke did not see any officers using nightsticks towards § 87(2)(b) nor did she see the officers using any force besides trying to handcuff him. Sgt. Luke stated that she did not have any contact with § 87(2)(b).

When § 87(2)(b) was successfully handcuffed, Sgt. Luke stated that he was screaming and cursing at the officers. Sgt. Luke had the officers place § 87(2)(b) in a patrol car to allow her to conduct an investigation. Sgt. Luke stated that § 87(2)(b) did not go into the car willingly and that the officers had to physically put him in the car. She further stated that he was not beaten to make him get into the car because she was there and saw what happened. Sgt. Luke was informed by one of the officers on the scene that a witness from a Blockbuster video store on the block, who originally called 911, stated that § 87(2)(b) beat up a female, later identified to be § 87(2)(b)'s girlfriend, § 87(2)(b). Sgt. Luke stated that § 87(2)(b) was still on the scene and she spoke to her about what transpired. Sgt. Luke stated that the female was crying at the time and informed Sgt. Luke that she and § 87(2)(b) got into an altercation over a car and car keys. Sgt. Luke stated that she had § 87(2)(b) taken to the precinct, and § 87(2)(b) also came to the precinct. Sgt. Luke did not recall who drove § 87(2)(b) to the precinct. Sgt. Luke stated that § 87(2)(b) did not want to press charges against § 87(2)(b). Therefore § 87(2)(b) was charged § 87(2)(a) 160.50. Sgt. Luke stated that inside the precinct § 87(2)(b) was still screaming while in front of the desk and insisting that he did not want anyone to touch him. Sgt. Luke stated that § 87(2)(b) was taken to the hospital, but she did not remember what that was for.

Sgt. Thomas Bonaro

Sgt. Bonaro was interviewed at the CCRB on July 21, 2004. On April 3, 2004, Sgt. Bonaro worked a 1450x2347 tour assigned as the 26th Precinct's desk officer. Sgt. Bonaro was dressed in uniform.

Sgt. Bonaro was not on the scene when § 87(2)(b) was arrested, but had contact with § 87(2)(b) when he was brought to the station house. Sgt. Bonaro stated that when § 87(2)(b) entered the precinct he had a negative attitude and was yelling at Sgt. Bonaro that he wanted to know why he was arrested, and that he did not want to be handcuffed or searched. Sgt. Bonaro stated that § 87(2)(b) was in the precinct for a total of 10-15 minutes. He stated § 87(2)(b) was so upset while in the holding cell that ESU was called to calm him down. Sgt. Bonaro stated that it took ESU five minutes to arrive to the precinct, and the ESU officers that arrived spoke to him and calmed him down. Sgt. Bonaro stated § 87(2)(b) was labeled as an EDP because he was screaming and yelling in the holding cell. Sgt. Bonaro did not recall anything specific § 87(2)(b) was saying, just that he was "screaming and ranting." Sgt. Bonaro made the determination to EDP § 87(2)(b) and Lt. Dheedene agreed with that determination. § 87(2)(b) was transported to § 87(2)(b) for observation. Sgt. Bonaro stated he did not have any further contact with § 87(2)(b) after he left the precinct.

Police Documents

Command Log

The Command Log entry for § 87(2)(b) reflects that he refused to provide the officers with any pedigree information and also lists his condition as an emotionally disturbed person and reflects the fact that he was sent to § 87(2)(b) because of it.

Police Officer's CCRB Histories

Discourtesy allegations were substantiated against PO Iturralde and PO Carbonell for an incident that took place on April 15, 2004 (CCRB #200403560). This case is still pending at the police department, and a final disposition has not been reached. Therefore, PO Iturralde and PO Carbonell do not have any

substantiated allegations that resulted in discipline. PO Riley, PO Velez and PO Hamm do not have any substantiated allegations.

Civilian Criminal Conviction History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Undisputed Facts

§ 87(2)(b), § 87(2)(g) It is not in dispute, however, that when officers arrived to the incident location, § 87(2)(b) was placed in handcuffs; that § 87(2)(b) was placed in a patrol car and taken to the 26th Precinct; that § 87(2)(b) was taken out of the precinct and transported to § 87(2)(b) that while inside of the hospital, § 87(2)(b) began to get excited and was sedated and placed in the psychiatric ward. § 87(2)(b), § 87(2)(g)

Officer Identification

During his CCRB interview, § 87(2)(b) named PO Riley and PO Velez as being involved in the incident. PO Riley was also § 87(2)(b)'s arresting officer and Sgt. Bonaro was listed on the IAB log for this case. During their CCRB interviews, these officers confirmed their roles in the incident and combined, named PO Iturralde, PO Carbonell and Sgt. Luke as being involved. These officers also confirmed their roles in the incident during their interviews and named PO Hamm as being involved in the incident. PO Hamm was also interviewed and confirmed his role in the incident.

Credibility Assessment

§ 87(2)(b)

§ 87(2)(b), § 87(2)(g)

According to § 87(2)(b) he was not inside of, or near a Blockbuster Video store at any time that day, before the incident. Also according to § 87(2)(b) he had no clue why the officers approached him and handcuffed him. § 87(2)(b) stated that he and § 87(2)(b) were walking down the street and an unidentified male approached § 87(2)(b) and made an inappropriate comment to her. § 87(2)(b) then began to approach the male to find out what he said, and police cars came out of no where and numerous officers demanded that § 87(2)(b) get against a wall, threw him on the ground and handcuffed him. § 87(2)(b), § 87(2)(g)

PO Thomas Riley, PO Marcy Velez, PO Rafael Iturralde, PO Rolando Carbonell, PO Yuseff Hamm, Sgt Diana Luke, Sgt. Thomas Bonaro

§ 87(2)(g)

§ 87(2)(b), § 87(2)(g). When PO Riley and PO Velez arrived on the scene, the officers were finishing with handcuffing § 87(2)(b) and PO Riley helped him up and placed him in the patrol car. PO Velez did not have any contact with § 87(2)(b) because after he saw that § 87(2)(b) was successfully handcuffed, he went inside of the Blockbuster Video store to speak to witnesses. § 87(2)(b), § 87(2)(g)

When PO Velez left the Blockbuster, the only officer left on the scene was Sgt. Luke, who by her own account, had § 87(2)(b) taken to the precinct and stayed on the scene to conduct an investigation. PO Riley, PO Velez, Sgt. Luke and Sgt. Bonaro all witnessed the way in which § 87(2)(b) was conducting himself in the precinct § 87(2)(g), yelling and not following the orders of the officers. They stated § 87(2)(b) could be heard screaming wherever you were in the precinct. Because of this, Sgt. Bonaro and Lt. Dheedene made the determination to label § 87(2)(b) an EDP and send him to § 87(2)(b) where he was later placed in the psychiatric ward due to how he was acting there.

Allegation A: PO Rafael Iturralde used physical force against § 87(2)(b)

Allegation B: PO Rolando Carbonell used physical force against § 87(2)(b)

Allegation C: PO Yuseff Hamm used physical force against § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

The officers claimed that excessive force was never used, and that § 87(2)(b) was taken to the ground, his arms were forced behind his back and he was placed in handcuffs. § 87(2)(b), § 87(2)(g)

In Police Department v. Torres, OATH Index No. 994/91, the ALJ noted that "resistance to an arrest raises the threshold level of reasonable force which may be used to effectuate it." Similarly, in Transit Authority v. Godas, Lively & Palumbo, OATH Index No. 1357-59/90, the hearing judge held that "resistance to an arrest plainly raises the level of force that is reasonable to effect the arrest." Patrol Guide Procedure 203-11 states that "only that amount of force necessary to overcome resistance will be used to effect an arrest or take a mentally ill or emotionally disturbed person into custody." The Police Student's Guide's 'Scale of Escalating Force' describes the appropriate force response to minor physical resistance as compliance techniques, or "wrestling holds and grips designed to physically overpower subjects and/or to inflict physical pain that ends when the technique is stopped and that causes no lasting injury." The officers stated that § 87(2)(b) was resisting and that they used the amount of force necessary to handcuff him. The officers stated that because he was resisting, § 87(2)(b) was taken to the ground, and the officers forced his arms behind his back and handcuffed him. § 87(2)(g)

it is therefore recommended that Allegations A-C be exonerated.

Allegation D: PO Thomas Riley used physical force against § 87(2)(b)

Allegation E: PO Marcy Velez used physical force against § 87(2)(b)

§ 87(2)(b) claimed that PO Riley and PO Velez were involved in using force against him while he was being handcuffed. According to the statements of the officers interviewed, PO Riley and PO Velez, who were partners on this day, were not involved in handcuffing § 87(2)(b) and arrived on the scene after he was already handcuffed. § 87(2)(b), § 87(2)(g)

Although PO Riley was not involved in handcuffing § 87(2)(b) he did admit to using force against § 87(2)(b) to place him in the patrol car after he was handcuffed. PO Riley stated that § 87(2)(b) was resisting and refused to be placed in the patrol car. PO Riley stated that he placed

his hand on § 87(2)(b)'s head and physically placed him in the patrol car. PO Velez, however, did not use any force against § 87(2)(b) because he went inside of the Blockbuster Video store to speak to witnesses as soon as he arrived on the scene and § 87(2)(b) had already been taken to the precinct when he left the Blockbuster. It is therefore recommended that Allegation D be exonerated and Allegation E be unfounded.

Allegation F: PO Thomas Riley threatened § 87(2)(b) with the use of mace

§ 87(2)(b), § 87(2)(g) § 87(2)(b)
§ 87(2)(b) alleged that when he was being handcuffed, PO Riley took out his pepper spray canister and pointed it towards § 87(2)(b)'s face. § 87(2)(b) never claimed to have been sprayed with pepper spray. When PO Riley was questioned about this, he stated that he did threaten § 87(2)(b) with the use of pepper spray, but this occurred when he was trying to place § 87(2)(b) in the patrol car. PO Riley stated that § 87(2)(b) was resisting him and would not comply with his orders to go into the patrol car, so he asked him, "do you want to be sprayed with mace," to get him to comply. PO Riley stated that he never took his pepper spray out, but just asked § 87(2)(b) if he wanted to be sprayed with it, to make him comply. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)
According to the Scale of Escalating Force in the Police Student's Guide, when faced with minor resistance an officer is justified in using compliance techniques. § 87(2)(g)

§ 87(2)(b), § 87(2)(g)
it is therefore recommended that this allegation be closed as exonerated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: